

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JULY 17, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**STAN-UGBENE v. CALIFORNIA MEDICAL FACILITY, et al.
Case No. CU23-04075**

Motion by Attorney Matthew Soleimanpour and Bradley Beherns to Be Relieved as Attorney of Record

TENTATIVE RULING

The motion is granted, with withdrawal effective only upon prompt service on the client of the signed order.

**SAAD ISMAIL v. NORTHBAY HEALTHCARE GROUP, INC. and NORTHBAY
HEALTHCARE FOUNDATION
Case No. CU25-01681**

Defendants' Motion for Judgment on the Pleadings

TENTATIVE RULING

Defendants NORTHBAY HEALTHCARE GROUP, INC. and NORTHBAY HEALTHCARE FOUNDATION move for judgment on the pleadings against the first cause of action within Plaintiff SAID ISMAIL's complaint, alleging whistleblower retaliation in violation of Health and Safety Code section 1278.5. Defendants contend that the claim is time-barred.

Health and Safety Code section 1278.5 permits a civil plaintiff to bring an action for whistleblower retaliation under its subdivision (g). (*Shaw v. Superior Court* (2017) 2 Cal.5th 983, 996 (*Shaw*)). The statute does not state a limitations period applicable to this action. Code of Civil Procedure section 338, subdivision (a), providing a three-year statute of limitations generally for actions founded upon a liability described in a statute, applies. Plaintiff was terminated from employment with Defendants on March 17, 2022. He filed the instant action on February 20, 2025. His claim is timely.

Melamed v. Cedars-Sinai Medical Center (2017) 8 Cal.App.5th 1271 (*Melamed*) offers no relevant, citable holding. Though the Second District Court of Appeal muses at pages 1287-1288 that a one-year statute of limitations under Code of Civil Procedure section 340, relating to an action upon a statute for a penalty, “may” be appropriate for Health and Safety Code section 1278.5, subdivision (g) claims it also states “we need not, and do not, decide which limitations period is appropriate.” A case is not valid authority for a point not decided. (*In re Chavez* (2003) 30 Cal.4th 653, 656.)

The court declines to independently follow *Melamed*’s reasoning. While Health and Safety Code section 1278.5, subdivision (b)(3) states that there is a mandatory civil penalty for violations of the section, *Shaw* spells out that Health and Safety Code section 1278.5 has “three distinct remedial provisions” for violations: one creating a civil penalty, one creating a misdemeanor, and one creating a civil judicial action. (*Shaw, supra*, 2 Cal.5th at p. 996.) Defendants’ argument inspired by *Melamed* that a civil judicial action under one distinct provision must effectively also be an action for a penalty under a different distinct provision does not follow any more than an argument that a civil judicial action also seeks to convict the defendant of a criminal misdemeanor would. The “three distinct provisions” are distinctly enforced through administrative processes for the civil penalty, criminal court processes for the misdemeanor, and civil court processes for the civil action.

The court finds that the three-year statute of limitations of Code of Civil Procedure section 338, subdivision (a) applies to Plaintiff’s cause of action for violation of Health and Safety Code section 1278.5. Plaintiff’s claim is therefore timely. Defendants’ motion is denied.

AFFONSO v. Z GOLF FOOD & BEVERAGE SERVS., LLC, ET AL.
Case No. CU25-04751

Petition to Compel Arbitration

TENTATIVE RULING

Defendant’s petition to compel arbitration of Plaintiffs’ “individual” PAGA claims is granted.

Defendant establishes that the parties entered into an arbitration agreement. (Decl. of Sirios, Exhs. A-B.) This agreement requires the parties to “utilize binding arbitration as